

SC decision to make judges' assets public is welcome – but not enough

The Supreme Court's **decision** that judges should publicly declare their **assets** **is** welcome and significant, because it prioritises **transparency** and openness. In 1997, the SC had first **resolved** to publicly disclose judges' assets when it adopted a **code** of ethics for the judiciary, the **Restatement** of Values of Judicial Life. Now, in a full court meeting on April 1, all judges have **unanimously reaffirmed** this code, agreeing to put up a list of their assets in the public **domain**. A 2009 Delhi High Court **ruling**, while **upholding** the disclosure of judges' assets under the Right to Information Act, **had** said that "all **power** — judicial power being no exception — **is held accountable** in a modern Constitution. Holders of power too are expected to **live by** the standards they set, **interpret**, or **enforce**, at least to the extent their office demands. Conventions and practices, long followed, are known to be **legitimate** sources, and as **binding upon** those **concerned**, as the express provisions themselves." At a time when a sitting High Court judge, Justice Yashwant Varma, faces **allegations** that unaccounted cash was found at his official residence, Chief Justice of India Sanjiv Khanna's decision sends a much-needed signal that the judiciary is looking within **in order to** create institutional **mechanisms of accountability**.

In 2015, even as it **struck down** as unconstitutional the National Judicial Appointments Commission — which gave the government **a foot in the door** in the matter of appointing judges — the SC **acknowledged** that steps had to be taken to ensure accountability of judges. Now, a **decade** later, the two recent **incidents** in which questions have been raised over the conduct of judges **have pointed to** the continuing lack of an institutional framework. In Justice Varma's case, the allegations concern financial corruption, and in the case of an Allahabad High Court judge, Justice Shekhar Yadav, there are **accusations** of **partisan bias** and **prejudice**. While an **in-house** judicial inquiry has been initiated in both cases, the fact is that there are few options for the institution. The Constitution **sets a high bar** for the **impeachment** of a judge, making it **virtually** impossible without political **consensus**. Even the **decision** to initiate an in-house inquiry **is solely** in the hands of the CJI, who, increasingly, has a short tenure. At the same time, **informal solutions** to **deal with** corruption, such as the transfer of a judge or withdrawal of judicial work from him, **have** been **woefully** inadequate.

The **Collegium's transfer policy**, mostly **shrouded** in secrecy, for judges **in the dock** **is** now being questioned by the **Bar** — in the last two weeks, the Allahabad and Calcutta Bar protested the **repatriation** of judges to their respective high courts. That is why even though the Court's decision to disclose assets is a step in the right direction to retain public trust in the institution, much more needs to be done. It is also important that the framework of accountability comes from within the judiciary — so that the institution can **preserve** its independence. In fact, the judiciary must **acknowledge** that accountability is a **facet** of its independence.

[Practice Exercise]

- Red/blue coloring of words in the sentence indicates subject verb relationship; where 'red' denotes 'subject' and 'blue' denotes 'verb'.

Vocabulary

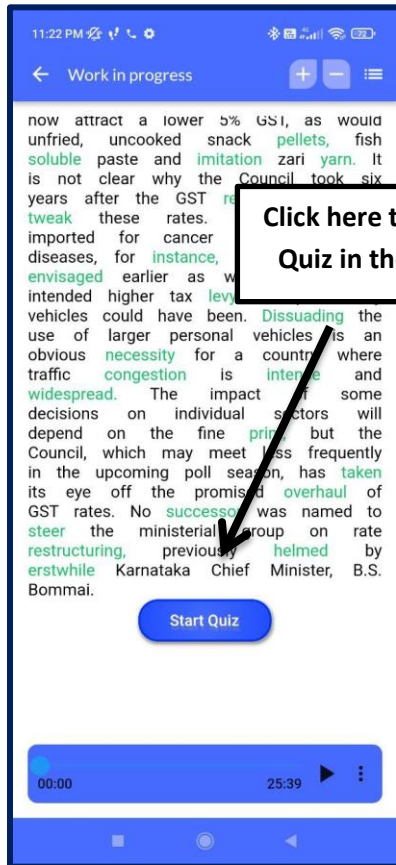
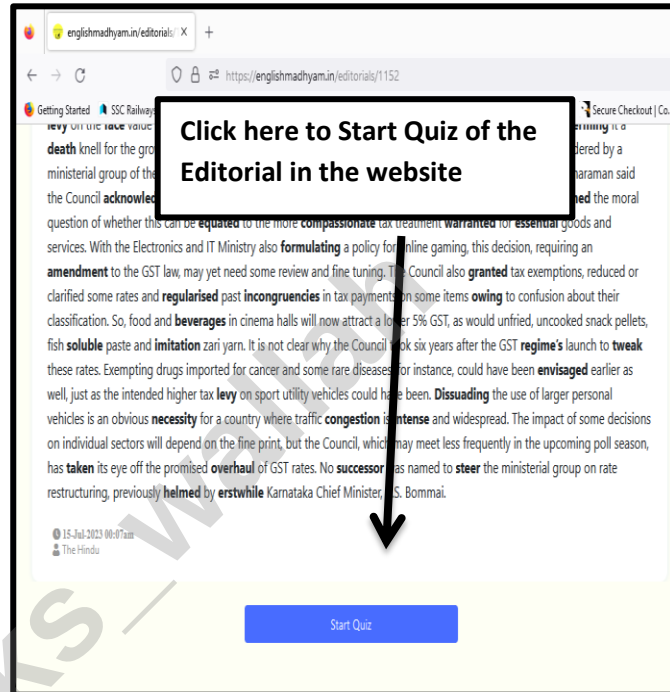
1. **Asset** (noun) – possession, property, resource, holding, wealth संपत्ति
2. **Transparency** (noun) – openness, clarity, visibility, accountability, honesty पारदर्शिता
3. **Resolve** (verb) – decide, determine, settle, conclude, agree निश्चय करना
4. **Code** (noun) – guideline, rulebook, protocol, standard, ethics नियमावली
5. **Restatement** (noun) – reiteration, rephrasing, repetition, clarification, expression पुनः कथन
6. **Unanimously** (adverb) – collectively, with one voice, all together, without opposition, by consensus सर्वसम्मति से
7. **Reaffirm** (verb) – confirm, assert again, renew, endorse, validate फिर से पुष्टि करना
8. **Domain** (noun) – field, area, realm, territory, jurisdiction क्षेत्र
9. **Ruling** (noun) – judgment, decision, verdict, order, pronouncement निर्णय
10. **Uphold** (verb) – support, maintain, confirm, defend, validate समर्थन करना
11. **Hold accountable** (phrase) – make responsible, answerable, liable, blame, charge जिम्मेदार ठहराना
12. **Live by** (phrasal verb) – follow, adhere to, practice, abide by, uphold पालन करना
13. **Interpret** (verb) – explain, clarify, construe, understand, decode व्याख्या करना
14. **Enforce** (verb) – implement, impose, apply, carry out, execute लागू करना
15. **Legitimate** (adjective) – lawful, legal, valid, acceptable, authorized वैध
16. **Bind upon** (phrasal verb) – obligate, compel, require, enforce, be mandatory बाध्य करना
17. **Concerned** (preposition) – involved, affected, related, associated, referenced संबंधित
18. **Allegation** (noun) – accusation, charge, claim, assertion, complaint आरोप
19. **In order to** (phrase) – so as to, for the purpose of, with the aim to, to, for the sake of के लिए
20. **Mechanism** (noun) – system, process, method, procedure, structure तंत्र / प्रणाली
21. **Accountability** (noun) – responsibility, answerability, transparency, liability, obligation जवाबदेही
22. **Strike down** (phrasal verb) – invalidate, annul, nullify, reject, dismiss रद्द करना
23. **A foot in the door** (phrase) – entry point, initial access, opportunity to begin, first step, beginning अवसर मिलना
24. **Acknowledge** (verb) – recognize, admit, accept, appreciate, concede स्वीकार करना

25. **Decade** (noun) – Period of ten years दशक
26. **Point to** (phrasal verb) – indicate, suggest, highlight, refer to, denote संकेत करना
27. **Accusation** (noun) – charge, blame, claim, allegation, indictment आरोप
28. **Partisan** (adjective) – biased, one-sided, prejudiced, politically inclined, sectarian पक्षपातपूर्ण
29. **Bias** (noun) – prejudice, favoritism, partiality, inclination, unfairness पक्षपात/ झुकाव
30. **Prejudice** (noun) – bias, preconception, discrimination, unfairness, intolerance पूर्वाग्रह
31. **In-house inquiry** (noun) – an internal investigation or disciplinary process conducted within an organization, like the judiciary आंतरिक जांच
32. **Set the Bar** (phrase) – To set a high/low standard for something
33. **Impeachment** (noun) – a charge of misconduct made against the holder of a public office. महाभियोग
34. **Virtually** (adverb) – nearly, almost, practically, essentially, effectively लगभग
35. **Consensus** (noun) – agreement, harmony, unity, general opinion, accord आम सहमति
36. **Solely** (adverb) – only, exclusively, entirely, completely, alone केवल
37. **Deal with** (phrasal verb) – handle, manage, address, tackle, respond to सामना करना
38. **Woefully** (adverb) – terribly, inadequately, miserably, sadly, regrettably अत्यंत दुःखपूर्वक / बहुत कम
39. **Collegium** (noun) – refers to a body of judges, primarily comprising the Chief Justice of India and the four senior-most judges of the Supreme Court न्यायिक नियुक्ति समिति
40. **Shroud** (verb) – cover, conceal, hide, mask, obscure ढकना / छिपाना
41. **In the dock** (phrase) – under scrutiny, being judged, under trial, accused, questioned कठघरे में होना
42. **Bar** (noun) – lawyers collectively.
43. **Repatriation** (noun) – return, restoration, retransfer, reinstatement, homecoming वापसी / पुनः स्थानांतरण
44. **Preserve** (verb) – protect, maintain, safeguard, uphold, conserve बनाए रखना
45. **Facet** (noun) – aspect, feature, element, dimension, angle पहलू

Summary of the Editorial

1. **Significant Decision** – The Supreme Court (SC) has decided that judges should publicly declare their assets, reinforcing transparency.
2. **Historical Context** – The move aligns with the 1997 SC code of ethics, *Restatement of Values of Judicial Life*, which first supported asset disclosure.
3. **Unanimous Agreement** – On April 1, all SC judges unanimously reaffirmed the code, agreeing to publicly list their assets.
4. **Legal Backing** – A 2009 Delhi High Court ruling had already upheld asset disclosure under the Right to Information Act.
5. **Judiciary's Responsibility** – The ruling emphasized that judicial power, like all power, must be held accountable under a constitutional framework.
6. **Recent Scandals** – Allegations against Justice Yashwant Varma for unaccounted cash highlight the urgency for accountability mechanisms.
7. **CJI's Role** – Chief Justice Sanjiv Khanna's leadership in this matter sends a strong message of introspection and reform.
8. **Previous Attempts** – In 2015, SC struck down the NJAC but acknowledged the need for internal judicial accountability mechanisms.
9. **Continuing Issues** – Recent misconduct allegations against judges point to persistent gaps in the accountability framework.
10. **In-house Limitations** – Current in-house inquiries are rare, opaque, and dependent on the CJI, who often has a short tenure.
11. **High Bar for Impeachment** – The constitutional requirement for judge impeachment is very stringent and difficult to meet.
12. **Weak Informal Measures** – Informal practices like judge transfers or withdrawal of work have proven ineffective in curbing corruption.
13. **Collegium Criticism** – The secretive transfer policy by the Collegium is under fire, with Bar associations protesting recent judge repatriations.
14. **Need for Structural Reform** – While asset disclosure is a positive step, it is insufficient without comprehensive institutional reforms.
15. **Accountability and Independence** – True judicial independence must include self-driven accountability mechanisms from within the judiciary.

Practice Exercise: SSC Pattern Based

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